

24STCV14962 24STCV14962

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV14962

JANE

DOE 1, et al. vs MCGRATH KAVINOKY, LLP, et al.

July

8, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT MCGRATH KAVINOKY LLP'S MOTION TO COMPEL FURTHER RESPONSES TO ITS SPECIAL INTERROGATORIES TO DOE 2 (SET ONE) IN COMPLIANCE WITH THE COURT'S MARCH 2, 2026 ORDER.

RULING:

The Motion is granted,
except as to request number 44 and the sanctions request.

On or before September 8,
2026, Plaintiff JANE DOE 2 shall serve further responses in full compliance
with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant
MCGRATH KAVINOKY LLP'S Special Interrogatories, (Set One), numbers 3, 62, 70,
83, 92, 95, 97, and 100.

I.

BACKGROUND

The Court incorporates by
reference the Background stated in the Minutes entered on November 17, 2025.

On May 19, 2026, MCGRATH
KAVINOKY LLP (Defendant) filed the Motion to Compel Further Responses to certain
Special Interrogatories, as the supplemental responses are not full and
complete, as ordered on March 2, 2026. Defendant also requests sanctions
against Doe 2 in the amount of \$5,000.00.

JANE DOE 2 (Plaintiff) opposes,
arguing that supplemental responses have been served in compliance with the
Order, and much of the information Defendants seek cannot be provided since
Defendants have not produced the complete client file. Plaintiff also advocates
appointing the Discovery Referee for this and any future discovery matters.

I.

LEGAL STANDARD

"While the party
propounding interrogatories may have the burden of filing a motion to compel if
it finds the answers it receives unsatisfactory, the burden of justifying any
objection and failure to respond remains at all times with the party resisting an
interrogatory." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions,

unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

II.

ANALYSIS

Below the Court analyzes the
Separate Statement filed on June 24, 2026.

1. “SPECIAL

INTERROGATORY NO. 3: Describe the circumstances under which YOU learned that Plaintiff [Doe 1] intended to file this ACTION.”

Granted.

Plaintiff failed to
address circumstances not privileged and separable from attorney-client
communications.

“[A] responding party may
object to an interrogatory that seeks privileged information by clearly stating
the objection and the particular privilege invoked. (Hernandez v. Superior
Court (2003) 112 Cal.App.4th 285, 293 [“But the existence of a document
containing privileged information is not privileged.”].)

2. “MK’S

SPECIAL INTERROGATORY NO. 44: State all facts that SUPPORT YOUR contention in
paragraph 67 of the COMPLAINT that ‘Other plaintiffs experienced exactly the
same change in how Defendants treated them.’ ”

Denied.

Contention

interrogatories involve no minimum requirement as to the content being supportive.

Instead, if there is any willful obfuscation of responsive information other remedies may apply, including drastic sanctions, or summary judgment.

Contention

interrogatories involve the subjective reflection of attorneys in formulating a response in a sophisticated process of legal reasoning, sorting through evidence and organizing it in terms of contentions a party is asserting. (Rifkind v. Superior Court (1994) 22 Cal.App.4th 1255, 1263.) ““There is no doubt that a defendant is entitled to discover by appropriate interrogatories the facts, if any, presently known to the plaintiff upon which he bases the allegations of his complaint and upon which he presently relies to prove his case.”” (Tehachapi-Cummings Cnty. Water Dist. v. Superior Court of Kern Cnty. (1968) 267 Cal.App.2d 42, 46.) In responding to contention requests, respondents’ willful obfuscation, game playing, stonewalling by referencing continuing discovery, providing immaterial information, or concealing support or a lack thereof, may support orders imposing drastic discovery sanctions. (See Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102-1104.) Any factually devoid or unsupportive responses in response to contention interrogatories may shift the burden of proof for a motion for summary judgment. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580.)

3. “MK’S

SPECIAL INTERROGATORY NO. 62: State the amount of damages YOU allege YOU suffered due to DEFENDANTS’ alleged professional negligence.”

Granted.

A final and binding

amount of damages calculated with expert assistance, need not be provided in discovery responses. Instead, an interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) Here, Plaintiff has not estimated some damages amounts in addressing several types of alleged damages, such as for emotional distress.

A response must

“represent the interrogated party’s present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency

Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

And many rulings from various other jurisdictions have required parties to calculate damages based on the best information available at the time of the discovery responses and to provide any later available information in response to any proper supplemental discovery requests. (See generally Damages, 7 Annotated Patent Digest § 41:41.50 [available on Westlaw].)

In this case, causation of damages is determined by case-within-a-case approach, involving a decision as to what should have been the result in the underlying matter, and questions about what would have happened had lawyers acted otherwise, are issues of fact, unless reasonable minds could not differ. (Ambriz v. Kelegian (2007) 146 Cal.App.4th 1519, 1531, 1532.) Further, no fixed or absolute standard exists for computing the dollar value of emotional distress damages, and juries have vast discretion in determining such damages amounts. (Hope v. California Youth Auth. (2005) 134 Cal.App.4th 577, 595.)

4. "MK'S

SPECIAL INTERROGATORY NO. 70: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged breach of fiduciary duty."

Granted, as already addressed above regarding Special Interrogatory number 62.

5. "MK'S

SPECIAL INTERROGATORY NO. 83: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged fraudulent misrepresentation."

Granted, as already addressed above regarding Special Interrogatory number 62.

6. "MK'S

SPECIAL INTERROGATORY NO. 92: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged fraudulent concealment."

Granted, as already
addressed above regarding Special Interrogatory number 62.

7. "MK'S

SPECIAL INTERROGATORY NO. 95: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged breach of contract."

Granted, as already
addressed above regarding Special Interrogatory number 62.

8. "MK'S

SPECIAL INTERROGATORY NO. 97: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged breach of implied covenant of good faith and fair dealing."

Granted, as already
addressed above regarding Special Interrogatory number 62.

9. "MK'S

SPECIAL INTERROGATORY NO. 100: State the amount of damages YOU allege YOU suffered due to DEFENDANTS' alleged conversion."

Granted, as already
addressed above regarding Special Interrogatory number 62.

III.

CONCLUSION

Accordingly, the Court grants
the Motion in part, as specified herein.

Finally, the Court denies

Defendant's sanctions request, the Court finding substantial justification based on (1) substantially improved supplemental responses, (2) the code-compliant response as to Special Interrogatory number 44, and (3) involvement of a first impression issue in California regarding requirements of discovery responses involving calculating damages. Courts may determine

substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)